

## 25STCV24655 25STCV24655

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-01

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C517%2C07%2F01%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C517%2C07%2F01%2F2026)

Source SHA-256: a4220089f6c5a5504628fd9de0c4f08dfe7cbc5d5578712c2ea4b0a0bfe8ef1a

Case Number: 25STCV24655 Hearing Date: July 1, 2026 Dept: 517

### Plaintiff

Joshua Hollins ("Hollins") sued Defendants Best Electric and Smog ("BES"), Andre Francois ("Andre"), and Aaron Francois ("Aaron") over injuries he says he sustained while he was at BES for the purpose of having repairs done on his motor vehicle. Hollins alleges in his

Complaint that after he voiced concerns about the work being done on the vehicle, Aaron, an employee of BES, punched him in the face. Pending before the Court is BES's Demurrer to the Complaint. The Court is sustaining

BES's demurrer with leave to amend. Hollins shall serve and file a First Amended Complaint within 30 days of this order. The case management conference scheduled for August 28, 2026 remains on calendar for that day. The Court will discuss that day the status of service of Andre and Aaron's Cross-Complaint.

### First and Causes

of Action: Assault; Battery

Assault and battery are interrelated

claims: assault is a lesser included offense of battery—in other words—every completed battery necessarily includes an assault. (People v. Morgan (2026) 19 Cal.5th 132, 139.) The

elements of a civil claim for assault are: (1) defendant intentionally caused plaintiff's immediate apprehension of a harmful or offensive contact with the plaintiff's body; (2) plaintiff did not consent to the contact; and (3) the contact caused injury, damage, loss, or harm to the plaintiff, such as emotional distress. (Lowry v. Standard Oil Co. (1944) 63 Cal.App.2d 1, 6.) A civil claim for battery requires: "(1) the defendant intentionally performed an act that resulted in a harmful or offensive contact with the plaintiff's person; (2) the plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss, or harm to the plaintiff. (Brown v. Ransweiler (2009) 171 Cal.App.4th 516, 526-527.)

Hollins's Complaint sufficiently

alleges claims for assault and battery against Aaron. The allegations are insufficient, however, to establish BES's liability for Aaron's assault and battery. Hollins alleges that Aaron and Andrew were employed by BES. To be sure, an employer may be liable for intentional torts of an employee through the concept of vicarious liability. (Civ. Code, § 2338.) For vicarious liability to attach, however, the employee's act must have had a sufficient causal nexus to the work the employee does for the employer. (Flores v. AutoZone West, Inc. (2008) 161 Cal.App.4th 373, 379. "If an employee inflicts an injury out of personal malice, not engendered by the employment, the employer is not liable." (Id., at p. 380.) Here, the Complaint contains insufficient allegations that Aaron's assault and battery on Hollins were connected to his work for BES. BES's demurrer to the assault and battery claims is sustained with leave to amend.

Third Cause of

Action: Intentional Infliction of Emotional Distress

To plead a claim for intentional

infliction of emotional distress ("IIED"), the plaintiff must allege (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Sandoval v. Pali Institute, Inc. (2025) 113 Cal.App.5th 616, 629 (Sandoval) [citing Hailey v. California Physicians' Service (2007) 158 Cal.App.4th 452, 474].) To be outrageous, conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Davidson v. City of Westminster (1982) 32 Cal.3d 197, 209.)

An unwarranted punch, especially if

accompanied by aggravating factors, may be sufficiently outrageous to form the basis of an IIED claim. However, Hollins's allegations are insufficient to impose liability against BES for IIED arising from Aaron's actions. BES's demurrer is thus sustained with leave to amend as to the IIED claim.

Fourth Cause of

Action: Negligence

The elements of a negligence claim are

“(1) the existence of a duty, (2) a breach of that duty, (3) injury to the plaintiff caused by the defendant’s breach, and (4) actual damages.” (Huntsman-West Foundation v. Smith (2024) 104 Cal.App.5th 1117, 1131.) A person ordinarily is obligated to exercise due care in his or her own actions so as not to create an unreasonable risk of injury to others. (Gutierrez v. Tostado (2025) 18 Cal.5th 222, 234, fn. 5.)

The Complaint alleges that each

Defendant “owed a duty to act reasonably and not to cause harm to [] Hollins.” (Complaint, ¶ 31.) However, the only alleged harm to Hollins are physical injuries, emotional distress, and psychological harm stemming from being punched by Aaron. (Id., ¶ 32.) The allegations are insufficient to establish that BES breached a duty owed to Hollins stemming from Aaron’s actions. BES’s demurrer to the negligence claim is sustained with leave to amend.

Fifth Cause of

Action: Negligent Hiring, Supervision, and/or Retention

Liability for negligent hiring “is

based upon that facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

Hollins alleges in the Complaint that

Aaron was unfit to perform the work he was hired for by BES. (Complaint, ¶¶ 36, 38.) Hollins fails to allege, however, that BES

knew of or should have known that hiring or retaining Aaron created a particular harm or that Aaron had a predisposition to or history of violent conduct. The claim for negligent, hiring, supervision, and retention is sustained with leave to amend.